



Dental Office Documentation Gap Assessment

Every item below maps to documentation, training, or templates included in the Compliance Ghost Kit.

How to use: check YES, NO, or N/A for each item. A Texas dental office answers to TSBDE, federal OSHA, HIPAA and Texas HB 300, and the DSHS radiation control program at the same time. Every “NO” below is a documentation gap the \$997 Compliance Kit fills.

Penalty basis: TMB, TSBDE, TDLR, and DSHS may each assess up to \$5,000 per violation under Occ. Code §165.001, §264.002, §51.302 and Health & Safety Code §146.019, and each day a violation continues can be treated separately. OSHA serious violations reach \$16,550 and willful or repeated ones \$165,514. HIPAA civil penalties run \$145–\$73,011 per violation with a \$2,190,294 annual cap for repeat violations of the same provision. OSHA and HIPAA amounts are the 2026 figures and adjust for inflation each January. Amounts shown are maximums, not predictions.

WRITTEN COMPLIANCE PLANS & PROTOCOLS

	YES	NO	N/A
Do you have a written infection control program with a designated infection control coordinator? Rule & penalty: up to \$5,000 per violation, each day separate (TSBDE) — enforced through 22 TAC §108.24 and CDC guidance KIT INCLUDES: Infection control manual aligned with TSBDE and CDC	☐	☐	☐
Do you have a written OSHA Exposure Control Plan updated within the past 12 months? Rule & penalty: up to \$16,550 per serious violation (OSHA) — the plan must be reviewed annually (29 CFR 1910.1030(c)) KIT INCLUDES: Exposure Control Plan template + annual update checklist	☐	☐	☐
Do you have a written Hazard Communication program with a chemical inventory? Rule & penalty: up to \$16,550 per serious violation (OSHA) (29 CFR 1910.1200) KIT INCLUDES: HazCom program template + chemical inventory spreadsheet	☐	☐	☐
Do you have a written Emergency Action Plan with evacuation procedures? Rule & penalty: up to \$16,550 per serious violation (OSHA) KIT INCLUDES: Emergency Action Plan template + evacuation posting template	☐	☐	☐
Do you have a written PPE hazard assessment? Rule & penalty: up to \$16,550 per serious violation (OSHA) KIT INCLUDES: PPE Hazard Assessment form + equipment selection guide	☐	☐	☐
Do you have a written breach notification plan with response procedures? Rule & penalty: \$145–\$73,011 per violation (HIPAA) — 60-day notification deadline KIT INCLUDES: Breach response plan + notification letter templates	☐	☐	☐
Do you have a written social media and online-review policy preventing PHI disclosure? Rule & penalty: Elite Dental Associates of Dallas paid \$10,000 to OCR in 2019 after replying to a Yelp review with a patient's name and treatment details KIT INCLUDES: Social media policy template + staff acknowledgment form	☐	☐	☐



RISK ANALYSIS & AUDITS

	YES	NO	N/A
Have you completed a HIPAA Security Risk Analysis within the past 12 months? Rule & penalty: \$145–\$73,011 per violation (HIPAA) — OCR reports risk analysis as its most frequently cited deficiency KIT INCLUDES: Step-by-step Security Risk Analysis workbook	☐	☐	☐
Do you have a documented risk management plan with the corrective actions taken from that assessment? Rule & penalty: OCR's Risk Analysis Initiative had completed 13 enforcement actions as of April 2026, with settlements starting at \$10,000 KIT INCLUDES: Risk management plan template with corrective action tracker	☐	☐	☐

STERILIZATION & RADIATION SAFETY

	YES	NO	N/A
Is every sterilizer monitored with biological (spore) testing on a documented schedule — CDC guidance is at least weekly — with results retained? Rule & penalty: up to \$5,000 per violation, each day separate (TSBDE) (22 TAC §108.24), plus infection control liability KIT INCLUDES: Sterilization monitoring log + spore test tracking form	☐	☐	☐
Do your sterilization logs record the date, time, and operator for every autoclave cycle? Rule & penalty: up to \$5,000 per violation, each day separate (TSBDE) KIT INCLUDES: Sterilization log template (print-ready daily sheets)	☐	☐	☐
Is every dental x-ray machine — intraoral, panoramic, and cone-beam — registered with the DSHS radiation control program, with written operating and safety procedures available at the unit? Rule & penalty: 25 TAC §§289.226 and 289.232 — DSHS administrative penalties apply KIT INCLUDES: Radiation registration tracker + written operating procedures	☐	☐	☐
Does every dental assistant who positions or exposes x-rays hold a current TSBDE dental assistant radiology certificate? Rule & penalty: up to \$5,000 per violation, each day separate (TSBDE) KIT INCLUDES: Staff credential log covering licenses, certificates, and CE	☐	☐	☐

TRAINING DOCUMENTATION



	YES	NO	N/A
Have all employees with blood or OPIM exposure completed annual bloodborne pathogen training? Rule & penalty: up to \$16,550 per serious violation (OSHA) — training records kept 3 years KIT INCLUDES: BBP training guide + quiz + completion certificates + training log	☐	☐	☐
Have all staff — front desk, billing, and clinical — completed documented privacy training within 90 days of hire? Rule & penalty: Health & Safety Code Chapter 181 (HB 300) — \$145–\$73,011 per violation (HIPAA) KIT INCLUDES: HIPAA and HB 300 training guide + quiz + signed acknowledgment forms	☐	☐	☐
Do you document that hepatitis B vaccination was offered within 10 days of hire, with signed declinations on file? Rule & penalty: up to \$16,550 per serious violation (OSHA) KIT INCLUDES: Hep B declination form + vaccination tracking log	☐	☐	☐
Do you have documented employee training on chemical hazards (HazCom)? Rule & penalty: up to \$16,550 per serious violation (OSHA) KIT INCLUDES: HazCom training materials + completion log	☐	☐	☐

FORMS, TEMPLATES & LOGS

	YES	NO	N/A
Is a Notice of Privacy Practices provided to every new patient and posted visibly? Rule & penalty: \$145–\$73,011 per violation (HIPAA) KIT INCLUDES: Notice of Privacy Practices template + patient acknowledgment form	☐	☐	☐
Are signed business associate agreements in place with every vendor that accesses PHI? Rule & penalty: \$145–\$73,011 per violation (HIPAA) KIT INCLUDES: BAA template customizable for any vendor type	☐	☐	☐
Do you maintain a sharps injury log recording all needlestick injuries? Rule & penalty: up to \$16,550 per serious violation (OSHA) KIT INCLUDES: Sharps Injury Log template	☐	☐	☐
Do you keep Safety Data Sheets in an organized, accessible binder or system? Rule & penalty: up to \$16,550 per serious violation (OSHA) KIT INCLUDES: SDS organization guide + employee access documentation	☐	☐	☐
Are patient records retained at least 5 years from the date of last treatment (for a minor, until age 21 or 5 years, whichever is longer)? Rule & penalty: 22 TAC §108.8 · up to \$5,000 per violation, each day separate (TSBDE) KIT INCLUDES: Records retention schedule including the minors calculation	☐	☐	☐



YOUR SCORE: _____ YES / _____ NO / _____ N/A **“NO” COUNT:** 0–2 low · 3–5 medium · 6+ high

Every “NO” above is a documentation gap the Compliance Kit fills.

The Compliance Ghost Compliance Kit (\$997) includes ready-to-use compliance manuals, training guides with quizzes, completion certificates, the required forms and templates, and a step-by-step implementation guide — covering every item on this checklist, written for your business and delivered within 48 hours.

One-time purchase. Payment plans available: 3 × \$349/mo. Compliance Shield is optional and keeps these documents current as Texas rules change — \$89/month or \$890/year, cancel anytime.

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